

render imposition of sanctions unjust. The Court must impose a monetary sanction on the party or attorney whose failure to serve timely Requests for Admission responses necessitated the motion.

Plaintiff Lisner seeks \$1,260.00 in sanctions based on a three hours of work to prepare and file the submit motion, one hour of anticipated time to appear for the hearing at the hourly rate of \$300.00, as well as \$60.00 in cost. (Declaration of Bellotti, at p. 8).

Defendant JMI opposes the request for sanctions on the grounds that it has provided verified responses on March 19, 2026. JMI also opposes sanctions against Mr. Wong—and points out that plaintiff’s counsel incorrectly identifies defense counsel as Mr. Wang—stating that he was not assigned to work on the matter until October 6, 2025, which was weeks after the initial responses were due. (Opposition, at p. 13-14). Further, JMI states that discovery was served via electronic service before parties had consented to electronic service in violation of Code of Civil Procedure section 1010.6 (b)(3). JMI also asserts that it has complied with discovery and served verified responses prior to the hearing date. JMI asked plaintiff’s counsel on three separate dates to withdraw the motion and cited *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776. (Declaration of Wong, at p. 5). Defendant further avers that the plaintiff did not file a motion to compel further responses.

Separately, JMI seeks sanctions against the plaintiff under Code of Civil Procedure section 128.5 for failing to withdraw this motion after receiving verified responses and rendering the motion moot. (Opposition, at p. 17). Defense counsel requested that the plaintiff withdraw its motion on March 5, July 9, and July 10, 2026. (*Id.*). Per JMI, plaintiff’s counsel conditioned any withdrawal on provisions of unrelated defense medical examinations and depositions, thus leveraging other discovery in bad faith or tactics. Thus, JMI seeks \$4,025.00 against the plaintiff for attorney’s fees based on nine hours of work researching, reviewing, and opposing the motion, and 2 hours of anticipatory time in reviewing a reply brief –no reply brief was submitted—and 0.5 hours for attending the court hearing for a total of 11.5 hours at the hourly rate of \$350.00.

V. CONCLUSION

Based on the foregoing, and the defendant JMI serving verified responses on March 19, 2026 prior to the hearing, the motion to deem admissions admitted is rendered MOOT. Thus, the plaintiff’s request for sanctions is DENIED.

Based on the procedural history and timeline of the motion and opposition, the defendant’s motion for sanctions is DENIED. Both parties are admonished that discovery is not to be misused and any future motions to compel and request for sanctions will be scrutinized for monetary and evidentiary sanctions. The Court will prepare the formal Order.

Calendar Line # 4

Case Name Rolan Estrada vs Ron Estrada

Case No. 24CV442732

Motion to Appoint Appraiser to Determine Fair Market Value

I. BACKGROUND

This case involves a Complaint filed on July 9, 2024, under the Partition of Real Property Act (“PRPA”) for partition of real property, an 80-acre of land located in Morgan Hill, Santa Clara County, California, 95037, APN: 742-26-002 (“Subject Property”). (Complaint and Motion at p. 2). The Subject Property is held by joint tenants, Plaintiff Rolan Estrada and Defendant Ron Estrada. (Complaint). Per the defendant, the plaintiff owns 25% interest and the defendant owns 75% interest in the Subject Property. (*Id.*; Motion at p.5; Declaration of Gregory Brown). Defendant asserts that there is no agreement in a record binding all the contents which govern the partition of the property. (*Id.*).

Defendant holds an unsatisfied money judgment against the plaintiff in the total amount of \$113,462.98 as of October 16, 2025 (Motion, at p. 2). The judgment was levied against the Subject Property, which the defendant purchased for the preservation of title to the Property. (*Id.*). Defendant asserts that he is the sole contributor for all expenses and maintenance of the Subject Property, including, but not limited to taxes paid every year since 1987, repairs, and the maintenance of the road that runs through the property. (*Id.*, at p. 3). The cost of expenses as of October 16, 2026 is estimated at \$215,818.95. (*Id.*). Based on the plaintiff's quarter ownership of the property, the plaintiff should have paid his portion of expenses that would amount to \$53,954.74. (*Id.*). Defendant asserts that the PRPA provides for offsets to allow the purchasing parties to pay only what is owed after offsets and is entitled to credit against the price in an amount equal to the purchaser's share of the proceeds. (*Id.*, at p. 2-3).

Before the Court, is Defendant Ron Estrada's motion to appoint an independent appraiser to determine the fair market value under partition of real property and confirm offsets that was filed on October 22, 2025. The motion was accompanied by a proof of service on that same day indicating electronic service to plaintiff's counsel. The defendant seeks the following orders: (1) an order appointing Bradley Carneghi of Carneghi-Nakasako & Associates as appraiser of the Subject Property. (Motion, at p. 6; Declaration of Brown; Exhibit 7); (2) an order confirming that if the defendant elects to buy all of the plaintiff's 25% interests in the Subject Property, the defendant will be entitled to offsets for maintenance, taxes, and preservation of title through the money judgment and that he will be credited against any sum otherwise payable to the plaintiff. (*Id.*, at p. 3); (3) an order that if the Subject Property is sold, the offset amounts shall be deducted from the plaintiff's share of the sale proceeds and paid to the defendant. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following, moving papers, including Defendant's notice of motion, memorandum of points and authorities in support of a motion, Declaration of Greg Brown in support of the defendant's motion and attached Exhibits 1-10, and proof of service (totaling 69 pages), as well as the pleadings.

II. LEGAL STANDARD

The Uniform Partition of Heirs Property Act former Code of Civil Procedure section 874.311 et seq., governs actions filed on or after January 1, 2022 for the partition of real property that is "heirs property" as defined in the Act. According to Civil Code of Procedure section 874.312, subdivision (e), "heirs property" means real property held in tenancy in common which satisfies all the following requirements as of the filing of a partition action:

- (1) There is no agreement binding all the cotenants which governs the partition of the property.
- (2) One or more of the cotenants acquired title from a relative, whether living or deceased.
- (3) Any of the following applies: 20% or more of the interests are held by cotenants who are relatives; 20% or more of the interests are held by an individual who acquired title from a relative, whether living or deceased; or 20% or more of the cotenants are relatives.

Parties may request the "appoint[ment of] a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate." (Code Civ. Proc. § 874.316(d)).

When partition is ordered, the court may apportion the costs of partition, including an appraisal fee, except that the court cannot apportion the costs of partition to any party that opposes the partition unless doing so is equitable and consistent with the purposes of the Act.

Pursuant to Code of Civil Procedure section 874.316(d), within 10 days after the appraiser files his or her appraisal with the court, the court must send notice to each party with a known address, stating the following:

- (1) The appraised fair market value of the property.
- (2) That the appraisal is available at the court clerk's office.
- (3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection. (Cal. Code Civ. P. § 874.316(d)).

Section 874.316(e)-(f) then states that: If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). After the hearing on the fair market value of the property under section 874.316(f), but before considering the merits of the partition action, the court must determine the property's fair market value and send notice of same to the parties. (Cal. Code Civ. Proc. § 874.316(g)).

Code of Civil Procedure section 872.140 provides in relevant part: “The court may, in all cases, order allowance, accounting, contribution, or other compensatory adjustment among the parties according to the principles of equity.” (Code Civ. Proc., § 872.140). “Every partition action includes a final accounting according to the principles of equity for both charges and credits upon each cotenant’s interest. Credits include expenditures in excess of the cotenant’s fractional share for necessary repairs, improvements that enhance the value of the property, taxes, payments of principal and interest on mortgages, and other liens, insurance for the common benefit, and protection and preservation of title.” (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035-1036).

Section 873.220 provides that: “As far as practical, and to the extent it can be done without material injury to the rights of the other parties, the property shall be so divided as to allot to a party any portion that embraces improvements made by that party or that party’s predecessor in interest. In such division and allotment, the value of such improvements shall be excluded.” (Code Civ. Proc., § 873.220).

III. ANALYSIS

Defendant Ron Estrada asserts that under Code of Civil Procedure section 874.313(a), PRPA applies to the Subject Property filed on or after January 1, 2023. (Motion, at p. 5). Defendant avers under sections 874.311(b) and 874.313(a) that PRPA applies the Subject Property held in common where there is no agreement in a record binding all the contents which govern the partition of the property. (*Id.*). As to the joint tenancy, the defendant alleges to own 75% interest and the plaintiff to own 25% interest in the Subject Property. (*Id.*; Declaration of Brown). Defendant asserts that there is no recorded agreement governing the partition of the Subject Property. (*Id.*).

Here, there is no agreement in record binding the parties to the Subject Property which governs the partition of the Property. The property is “heirs property” because the October 28, 1987 grant deed shows that the property is titled in the names of William R. Estrada and Jeanne L. Estrada as husband and wife/joint tenants, and parents to Ronald Estrada and Rolan Estrada, their sons, whom they leave title to as follows: Ronald Estrada 75% interest and Rolan Estrada 25% interest. (Declaration of Brown; Exhibit 5 (followed by sub. Exh. 1), at p. 51). Thus, as both parties acquired title from their blood relatives pursuant to section 874.312(i), this prong is satisfied.

A. APPOINTMENT OF APPRAISER

Defendant seeks an order for appointment of a licensed, disinterested appraiser to determine the fair market value

of the Subject Property. (Motion, at p.2). The defendant seeks an order appointing Bradley Carneghi of Carneghi-Nakasako & Associates as appraiser of the Subject Property. (Motion, at p. 6; Declaration of Brown; Exhibit 7). Defendant asserts that Bradley Carneghi is a licensed level “AG” Certified General Appraiser, which is the highest level of appraiser licensing. (*Id.*).

Here, Appraiser Bradley Carneghi has no relationship with the parties and is a licensed level AG appraiser. Under section 874.316(d), the Court finds this prong satisfied.

B. OFFSETS

Defendant seeks an order confirming that if the defendant elects to buy all of the plaintiff’s 25% interests in the Subject Property, the defendant will be entitled to offsets for maintenance, taxes, and preservation of title through the money judgment and that he will be credited against any sum otherwise payable to the plaintiff. (*Id.*, at p. 3). Defendant estimates having spent approximately \$215,747.35 from 1987 through 2025 on property taxes and road maintenance on the subject property. (Declaration of Brown; Exhibit 10). Based on the plaintiff’s quarter interest in the Subject Property, the defendant seeks offset in the amount of \$53,954.74. Defendant states that the property value and property tax figures were estimated on current values and assumed a tax rate of 1.3% per year. (*Id.*, at p. 14). The estimated annual road maintenance expenses were based on estimated costs of \$150.00 per week, annualized, and was then reduced annually by an assumed inflation rate of 2.6% per year. (*Id.*).

Defendant seeks to exercise the right of first refusal. Under the PRPA, “[i]f any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.” (Code Civ. Proc. § 874.317(a)). The Court finds that the defendant may buy interests of the plaintiff under section 874.317(b).

The Court calculates that 25% of the \$215,747.35 amounts to \$53,936.84. The request for offset for maintenance, taxes of the Subject Property, which the Court finds appropriate and satisfied.

C. CREDITS

Defendant seeks an order that if the Subject Property is sold, the offset amounts shall be deducted from the plaintiff’s share of the sale proceeds and paid to the defendant. (*Id.*). The defendant acquired a money judgment against the plaintiff. The underlying judgment as of April 3, 2023 was \$98,037.70. Per diem interest in the amount of \$16.64 is applied and as of October 16, 2025, the judgment amounts to \$113,462.98. The defendant states the judgment was acquired to benefit the Subject Property owners, and seeks an offset any amounts owed to Plaintiff in the partition. (Motion, at p. 8). Defendant seeks to determine whether the money judgment that was awarded against the plaintiff and in favor of the defendant may be satisfied in whole or in part as consideration, and to confirm taxes and maintenance costs paid by the defendant as an offset in the defendant’s favor. (*Id.*). Defendant seeks to be credited against any buyout or distribution of proceeds from the sale of the Subject Property. (*Id.*). Additionally, Defendant seeks a hearing on the valuation of the Subject Property 60 days from the date of appointment of the appraiser for the hearing on valuation and providing notice to the parties in compliance with Code of Civil Procedure section 874.316 (e)-(f).

The Court DENIES WITHOUT PREJUDICE the request to offset the credits based on the money judgment acquired by the defendant against the plaintiff.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS and ORDERS the following:

- (1) Bradley Carneghi of Carneghi-Nakasako & Associates is appointed as appraiser of the Subject Property;
- (2) The Defendant may elect to buy all of the plaintiff's 25% interest of the Subject Property and the defendant will be entitled to offset for maintenance and taxes of the Subject Property for the plaintiff's 25% portion of \$53,936.84; and
- (3) The offset amount for maintenance and taxes of \$53,936.84 shall be deducted for plaintiff's share if the Subject Property is sold.

The Court DENIES without prejudice the defendant's request to credit the money judgment acquired against the plaintiff at this time.

The matter will return on September 29, 2026 at 9:00 a.m. in Department 1 for hearing on valuation and providing notice to the parties of the value. The Court will prepare the formal Order.

Calendar Line # 5
Case Name Itria Ventures LLC et al vs Shivendra Basnet et al
Case No. 24CV448023

Motion for Attorneys' Fees and Costs

I. BACKGROUND

This case stems from a breach of written contract and breach of written guaranty, the Complaint was filed on September 24, 2024. On July 29, 2025, the court granted the Plaintiff Itria Ventures LLC ("Itria")'s motion for summary judgment. On August 27, 2025, there was an entry of judgment in the amount of \$408,164.80 in favor of the plaintiff. On September 5, 2025, there a notice of entry of judgment was entered.

On October 22, 2025, Plaintiff Itria Ventures LLC ("Itria") filed this motion for attorney's fees and cost. The motion was accompanied by a proof of service indicating mail and electronic mail service to defense counsel on that same day. The plaintiff seeks a total of \$12,141.51 comprised of attorney's fees in the amount of \$10,420.00 and costs in the amount of \$1,721.51.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: notice of plaintiff's motion; memorandum of points and authorities; Declaration of Jason S. Takenouchi in support of the motion and attached Exhibits A-B (totaling 40 pages); proof of service and the pleadings.

II. LEGAL STANDARD

A. TIMELINESS

Pursuant to California Rule of Court 3.1702, a fee motion "must be served and filed within the time for filing a notice of appeal under Rules 8.104 and 8.108 in an unlimited civil case . . ." (Rule 3.1702(b)(1)). Under Rule 8.104(a)(1), the "deadline ordinarily falls 60 days after notice of entry of judgment, or 180 days after entry of judgment, whichever is first." (*Kaufman v. Diskeeper Corp.* (2014) 229 Cal.App.4th 1, 8). "The language of the